COGS OF AUSTRALIA FOUNDATION

COG$ — Community Owned Gold and Silver / Community Operated Governance Structure

DISCRETIONARY CHARITABLE TRUST DEED

COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Sub-Trust C

In-Ground Mineral Value Doctrine · Indigenous Heritage Framework · Members Dividend Structure · Approved Ledger and RWA Infrastructure

CARETAKER TRUSTEE	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his capacity as the Caretaker Trustee of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust and thereby the Caretaker Trustee of Sub-Trust C, continuing unless and until he retires, is removed, or a later trustee structure is validly constituted under the Declaration.
DECLARANT	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW. As Declarant and Caretaker Trustee, he declares that Sub-Trust C is a ring-fenced division of the CJVM Hybrid Trust, constituted by this Deed as a sub-trust instrument under the Declaration. The Initial Trust Property is described in the Declaration and is not separately settled on Sub-Trust C.
TRUSTEE — ONGOING	The office of Trustee is not fixed to any named entity. This Deed follows the trustee office of the CJVM Hybrid Trust under the Declaration, and upon any valid change in that trustee structure the incoming trustee or trustees assume the rights, powers, duties, and obligations of the Trustee of Sub-Trust C, subject to any documents reasonably required to evidence, perfect, vest, register, or operationalise that change.
GOVERNING LAW	South Australia, Australia.
PRINCIPAL LEGISLATION	Corporations Act 2001 (Cth); Trustee Act 1936 (SA); Law of Property Act 1936 (SA); Charities Act 2013 (Cth); Native Title Act 1993 (Cth); AML/CTF Act 2006 (Cth); Privacy Act 1988 (Cth); Income Tax Assessment Act 1997 (Cth); Electronic Transactions Act 1999 (Cth); Electronic Transactions Act 2000 (NSW).
FOUNDING AND PREVAILING INSTRUMENT	This Deed is a sub-trust instrument made under and subordinate to the Declaration. The Declaration is subordinate to the Joint Venture Participation Agreement, which is the supreme governing instrument of the Joint Venture. In the event of any inconsistency between this Deed and the Declaration, the Declaration prevails. In the event of any inconsistency between this Deed or the Declaration and the Joint Venture Participation Agreement, that Agreement prevails.
OPERATIVE BASIS	This Deed gives effect to clauses 8.3, 27, and 33E.3 of the Declaration. All entrenched provisions of the Declaration apply directly to Sub-Trust C.
PERPETUAL DURATION	This Deed is perpetual. Sub-Trust C continues in existence for so long as the CJVM Hybrid Trust exists. Amendment is governed by this Deed consistently with the Declaration.

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CLASS RIGHTS OVERVIEW

Sub-Trust C does not participate in the general Beneficiary Distribution Stream and does not administer or issue any Unit Class or COG$ Token. Sub-Trust C participates exclusively through: (a) the $2.00 direct payment received on each lawful issue of a Donation COG$ / Class D Unit; and (b) its D Class Beneficial Unit Holder entitlement in Sub-Trust B.

COG$ CLASS STRUCTURE SCHEDULE

The controlling table of Unit Classes and corresponding COG$ Tokens is set out in Schedule 9, Part A of the Declaration. Lawful issue conditions and corresponding COG$ Token-recording conditions are governed by Schedule 9, Part A of the Declaration. The Class Structure and Administrative Schedule is in Schedule 2 of the Members Asset Pool Unit Trust Deed.

RECITALS

This Deed is made against the following background:

(A) The Foundation trades as COG$ (Community Owned Gold and Silver / Community Operated Governance Structure). A Company Limited by Guarantee (CLG) or other corporate trustee is not required by the Declaration and is to be adopted only if members so resolve or applicable law requires it. From execution, Thomas Boyd Cunliffe acts as the Caretaker Trustee of the CJVM Hybrid Trust unless and until the trustee structure changes in accordance with the Declaration.

(B) The Declaration constitutes and governs the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust, comprising Sub-Trust A, Sub-Trust B, and Sub-Trust C. The Declaration is the principal operative and governing instrument and prevails over all supplementary instruments.

(C) Clauses 8.3, 27, and 33E.3 of the Declaration establish Sub-Trust C as a discretionary and charitable trust. This Deed supplements and gives effect to those provisions.

(D) Sub-Trust C is funded from two sources, both arising exclusively from lawful issue of Donation COG$ / Class D Units under the Declaration, including Schedule 9, Part A of the Declaration: (a) a direct cash allocation of $2.00 from the consideration of each lawfully issued Donation COG$ / Class D Unit, payable to Sub-Trust C from Sub-Trust A at the time of lawful issue; and (b) Sub-Trust C's proportional D Class Beneficial Unit Holder share of the Donation Dividend Stream, received through Sub-Trust B in accordance with the Declaration. Sub-Trust C does not receive any portion of the consideration of any other Unit Class and does not itself mint or record any corresponding COG$ Token.

(E) The Charitable Purposes of Sub-Trust C encompass environmental stewardship, social and community welfare, First Nations cultural heritage and custodianship, education on resource governance, relief of poverty, community flourishing, and other public benefit purposes consistent with the Foundation's objects in Part 2 of the Declaration.

(F) The Trustee of Sub-Trust C must seek ACNC registration for Sub-Trust C at the earliest practicable opportunity, and in any event before or on Expansion Day, as the Caretaker Trustee is already lawfully able to do so and, if eligible, thereafter apply for DGR endorsement under Division 30 of the Income Tax Assessment Act 1997 (Cth).

(G) Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW holds office as Caretaker Trustee of Sub-Trust C in his personal capacity from the date of execution unless and until the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration. This Deed takes effect as a valid deed from the date of execution and follows that trustee office.

(H) The CJVM Hybrid Trust is constituted by the declaration by Thomas Boyd Cunliffe that he holds the Initial Trust Property on the trusts of the Declaration. The Initial Trust Property is the specifically identified parcel of

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1,545 ASX:LGM shares recorded in account CRVGS with a book cost of $239.48 AUD. That declaration constitutes the CJVM Hybrid Trust as a whole and not Sub-Trust C separately.

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PART 1 — PRELIMINARY

1. Name and Operative Status

1.1 This instrument is the Deed of Trust of the COGS Community Projects Fund (this Deed), being Sub-Trust C of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust.

1.2 This Deed is a supplementary instrument made under and subject to the Declaration. In the event of any inconsistency, the Declaration prevails. For the purposes of this Deed, Schedule 9, Part A of the Declaration (the Issue-and-Record Matrix) is incorporated by reference to govern the lawful issue of Donation COG$ / Class D Units and the corresponding COG$ Token-recording consequences of those Units.

1.3 This Deed is perpetual. Sub-Trust C continues in existence for so long as the CJVM Hybrid Trust exists.

1.4 This Deed is executed as a deed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee of Sub-Trust C and takes effect from execution. This Deed is executed by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required or produced. If witnessing is required by applicable law, the witness may attest electronically, including by separate audio-visual connection, and that attestation forms part of the Deed Execution Record. Where this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains a separate instrument with its own Deed Execution Record and is deemed for instrument-suite dating and effect to take effect on that same date.

1.5 This Deed follows the trustee structure of the CJVM Hybrid Trust under the Declaration. On each occasion that the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration, the incoming trustee or trustees automatically assume the rights, powers, duties, and obligations of the trustee under this Deed. The outgoing trustee and the incoming trustee must do all things and execute all documents reasonably necessary to evidence, perfect, register, vest, or otherwise give practical effect to that transition in relation to Sub-Trust C property, bank accounts, charity registrations, DGR records, grant records, and any associated contractual or administrative arrangements.

1.5A This Deed is executed electronically. The electronically authenticated instrument is the original Deed. No physical original, paper counterpart, or physical certified copy is required or produced. The Deed Execution Record, including any electronic witness attestation required by applicable law, is stored in the Foundation's secure systems. The Deed Execution Record for this Deed is separate from the Declaration Execution Record. A SHA-256 hash of the Deed Execution Record may be committed to the Foundation's governance record or public ledger as the canonical integrity reference for this Deed. An electronically authenticated PDF of this Deed produced from the Foundation's secure systems is a legal copy of this instrument for all purposes, including production to a court, a regulator, the FNAC, Trustees, or any other party. "Certified copy" in this Deed means an electronically authenticated PDF produced under this clause, or a printed copy of such a PDF certified as a true copy by a legal practitioner holding an unrestricted practising certificate in any Australian jurisdiction, a notary public, or a Justice of the Peace. The Foundation must preserve the Deed Execution Record and the electronically executed instrument for the operational life of this Deed and for not less than seven (7) years after the lawful dissolution of the CJVM Hybrid Trust, whichever is longer. The FNAC may access the Deed Execution Record and the electronically executed instrument through the Foundation's secure systems on written request. If the integrity of the Deed Execution Record is disputed, resolution is by SHA-256 hash verification against the recorded integrity reference. If hash verification is technically impossible or inconclusive, the Trustee must apply to the Supreme Court of South Australia for directions.

1A. Caretaker Trustee Period — Restrictions and Permitted Actions

1A.1 Until the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration, Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW holds office as trustee of Sub-Trust C in his

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personal capacity as Caretaker Trustee of the CJVM Hybrid Trust. This arrangement is valid under the Trustee Act 1936 (SA) and general equity principles.

1A.2 During the initial period, all references in this Deed to the Trustee, the Board, and any corporate trustee are to be read as references to the Caretaker Trustee to the extent required to give effect to this Deed, except where the context otherwise requires.

1A.3 During the Caretaker Trustee period, the following functions and restrictions apply: (a) lawful receipt and preservation of Sub-Trust C funding may begin on lawful issue of Donation COG$ / Class D Units in accordance with the Declaration, including Schedule 9, Part A; (b) before full grant-making authority becomes active, all funds received by Sub-Trust C must be held on trust in a segregated interest-bearing bank account and may be applied only to preservation, banking, registration, compliance, minimal administration of Sub-Trust C, and any urgent charitable relief permitted under clause 8.7 and applicable law; (c) no discretionary Grant may be made and no Gift Fund may be activated until the trustee structure then in office has adopted compliant Grant Guidelines, the required FNAC consultation mechanisms are active, and any additional requirements under the Declaration and applicable law have been satisfied; (d) ACNC registration preparation and application, and DGR preparation and application, may begin as soon as the trustee structure then in office is lawfully able to do so in accordance with this Deed, the Declaration, and applicable law; (e) during this period, the Caretaker Trustee may execute this Deed, open and maintain trust bank accounts, receive the direct Sub-Trust C allocations arising from lawful issue of Donation COG$ / Class D Units, preserve Sub-Trust C property, and take all preparatory steps reasonably necessary to establish the trustee structure, charitable compliance arrangements, Grant Guidelines, and other administrative systems required to bring Sub-Trust C into full operation; and (f) the Caretaker Trustee has a right of indemnity from trust property for all liabilities properly incurred in carrying out this clause.

1A.4 The Caretaker Trustee has personal liability for trust obligations during the initial period, subject to the right of indemnity in clause 1A.3.

1A.5 The governance structure of the CJVM Hybrid Trust must be actively progressed in accordance with Declaration clause 1.7.5. The Caretaker Trustee must use reasonable endeavours within twelve (12) months of execution to constitute the governance body required by the Declaration, and must convene the Inaugural Meeting within two (2) years of execution. The twelve (12) month period is an endeavours obligation only and does not displace the operative two (2) year deadline. To the extent of any inconsistency, Declaration clause 1.7.5 prevails.

1B. Managing Director and Caretaker Trustee Lock Period

1B.1 The Caretaker Trustee, Thomas Boyd Cunliffe, and any person first appointed as Managing Director of a CLG adopted as corporate trustee of the CJVM Hybrid Trust, is subject to a twelve (12) month lock period commencing on the date of their respective appointment (the MD Lock Period). During the MD Lock Period, that person may not be removed from office except for cause. This is an entrenched provision (Declaration clause 35).

1B.2 Removal for cause during the MD Lock Period is permitted only on one or more of the following grounds: (a) material breach of fiduciary duty that has not been remedied within 30 days of written notice by the Board; (b) conviction of a criminal offence involving dishonesty, fraud, or a penalty of imprisonment; (c) loss of legal capacity under applicable law; (d) unanimous resolution of the remaining Board members, supported by independent legal advice from qualified South Australian counsel, on the grounds of material and persistent failure to comply with an entrenched provision; or (e) a court order made by the Supreme Court of South Australia or a court of competent jurisdiction.

1B.3 No resolution of Members or Beneficiary Holders may remove the Caretaker Trustee or first appointed Managing Director during the MD Lock Period except on the grounds set out in clause 1B.2 and only following the procedure in clause 1B.4.

1B.4 Before any removal for cause during the MD Lock Period may take effect: (a) written notice specifying the grounds must be given to the person proposed for removal not fewer than 14 days before any meeting at which

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removal is to be considered; (b) the person proposed for removal must be given a reasonable opportunity to address the Board or Members in person or in writing; and (c) the removal must be approved by Special Resolution (75% majority) of the Members, unless the ground is a court order under clause 1B.2(e).

1B.5 The MD Lock Period applies once only to the Caretaker Trustee in respect of the initial 12 months from execution of the Declaration, and once only to the first appointed Managing Director of any CLG in respect of the first 12 months from that person's appointment. Successive holders are not subject to this clause.

1B.6 This clause is an entrenched founding governance protection and may not be amended, removed, or circumvented by any resolution during the MD Lock Period. After the MD Lock Period expires, this clause may be amended by Special Resolution (75% majority) of the Members in accordance with the amendment provisions of the Declaration.

2. Trustee Continuity and Transitional Instruments

2.1 The trustee structure of Sub-Trust C is at all times the trustee structure of the CJVM Hybrid Trust under the Declaration. On any valid change in that trustee structure, the incoming trustee or trustees become the trustee of Sub-Trust C and this Deed continues in full force and effect without re-execution.

2.2 No separate deed of appointment or retirement is required under this Deed to preserve continuity of the trusts of Sub-Trust C. However, the outgoing trustee and the incoming trustee must execute any deed, notice, transfer, vesting instrument, bank mandate, charity registration update, DGR record update, or other document reasonably necessary to evidence, perfect, vest, register, or operationalise the change in trustee.

2.3 Any transitional instrument executed in connection with a trustee change under clause 2.2 is evidentiary and operational only. It does not constitute the existence or continuity of Sub-Trust C, which follows the office of trustee under the Declaration.

2.4 A certified copy of each deed or instrument giving effect to a change in trustee must be retained with this Deed as an annexure, entered in the trust records, and provided to the FNAC upon request. The form in Annexure A may be used where appropriate, but it is not constitutive of continuity.

3. Definitions

Beneficiary Holders in this Deed are the Members of the Joint Venture as defined in the Joint Venture Participation Agreement. The two terms refer to the same persons exercising different capacities. Sub-Trust C acts as a Beneficiary Holder (and D Class Beneficial Unit Holder in Sub-Trust B) in its Trustee capacity — this Deed governs that Trustee capacity.

Trustee Functions has the meaning given in the Declaration and the Joint Venture Participation Agreement. Expansion Day has the meaning given in the Declaration — the date on which the Members activate the [Gundoo Ngiri] Proprietary Node on the Members Consensus Network.

ACNC	Australian Charities and Not-for-profits Commission.
ATO	Australian Taxation Office.
Board	Before any additional trustee is appointed, the Board means Thomas Boyd Cunliffe acting as Caretaker Trustee to the extent necessary to give effect to this Deed and the Declaration. Where the trusteeship is held by two or more individual trustees, the Board means those trustees collectively as the governing body of the trust. Where a corporate trustee is appointed, the Board means the board of directors of that corporate trustee. References to the Board apply to

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	whichever governing body holds the trustee function at the relevant time.
Charitable Purposes	The charitable purposes of Sub-Trust C set out in clause 6 of this Deed, which give direct effect to clauses 27.3, 27.4, and 33E.3 of the Declaration.
CLG	If used, a Company Limited by Guarantee incorporated under the Corporations Act 2001 (Cth) and appointed as corporate trustee of the CJVM Hybrid Trust in accordance with the Declaration.
CLG Constitution	The constitution of any CLG adopted under section 136 of the Corporations Act 2001 (Cth) if a CLG is incorporated and appointed within the trustee structure contemplated by the Declaration. A CLG Constitution governs the internal corporate affairs of that company only. It has no operative role in Sub-Trust C and does not govern this Deed.
Members Asset Pool	The portfolio of ASX-listed resource company shares, financial assets, and RWA held in Sub-Trust A, as defined in the Declaration.
Corporations Act	Corporations Act 2001 (Cth), as amended or replaced from time to time.
DGR	Deductible Gift Recipient — a body endorsed by the ATO under Division 30 of the Income Tax Assessment Act 1997 (Cth) to receive tax-deductible gifts.
Transitional Instrument	Any deed or instrument executed in connection with a trustee change under clause 2.2 to evidence, perfect, vest, register, or operationalise the trustee structure contemplated by the Declaration, including a deed of retirement and appointment where one is in fact required.
Donation COG$	The Donation COG$ / Class D Unit described in Declaration clause 24. Of the $4.00 unit consideration: $2.00 is paid directly to Sub-Trust C at the time of lawful issue; and $2.00 is invested through Sub-Trust A to acquire approved Members Asset Pool assets and generate the Donation Dividend Stream in perpetuity. No personal Beneficial Unit vests in the donor. Sub-Trust C is registered as D Class Beneficial Unit Holder for each validly issued Donation COG$ / Class D Unit. The lawful issue of the Class D Unit, and any corresponding COG$ Token minting or recording consequences, are governed exclusively by the Declaration, including Schedule 9, Part A, through the Members Vault process described there.
Donation Dividend Stream	The dividends and income received by Sub-Trust A attributable to the invested component ($2.00 per

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	lawfully issued Donation COG$ / Class D Unit) of Donation COG$ proceeds, as identified by the Donation Ledger. The Donation Dividend Stream is split: 50% transferred to Sub-Trust B for proportional distribution to all Beneficial Unit holders, including Sub-Trust C as D Class Beneficial Unit Holder; 25% retained in Sub-Trust A for mandatory reinvestment; and 25% applied to trustee administration costs. Sub-Trust C's entitlement is its proportional D Class Beneficial Unit Holder share received through Sub-Trust B — not a direct 50% allocation from Sub-Trust A.
Donation Ledger	The ledger maintained in accordance with the Declaration attributing a defined parcel of Sub-Trust A assets to Donation COG$ / Class D Unit proceeds.
FNAC	The First Nations Advisory Council established under Declaration clause 33A.
FPIC	Free, Prior and Informed Consent — the right of Indigenous peoples to give or withhold consent to projects affecting their lands, territories, and resources, in accordance with UNDRIP and applicable Australian law. FPIC is a binding operational and legal standard under Declaration clause 33C. Withholding consent is as legally valid as giving it and carries no adverse consequence for the relevant Traditional Owner group.
Gift Fund	The segregated internal fund maintained within Sub-Trust C under clause 11 to receive tax-deductible gifts where DGR endorsement is obtained. The Gift Fund does not create a separate trust outside Sub-Trust C unless applicable law requires otherwise.
Grant	A distribution of Trust Fund assets by the Trustee to an eligible Grantee for a Charitable Purpose, made in accordance with this Deed, the Declaration, and applicable law.
Grantee	An eligible recipient of a Grant under clause 8.3 of this Deed.
COG$ Token / Token	Has the meaning given in the Declaration. Sub-Trust C does not itself mint or record any COG$ Token. Where this Deed refers to Donation COG$ / Class D Units, the corresponding COG$ Token consequences arise only through lawful issue of the relevant Unit and are governed by the Declaration, including Schedule 9, Part A and the Members Vault process described there.
Schedule 9, Part A	The Issue-and-Record Matrix in the Declaration. It is incorporated into this Deed by reference for the limited purpose of determining when Donation COG$ / Class D Units are lawfully issued and when any corresponding COG$ Token may be minted or recorded. Sub-Trust C's D Class Beneficial Unit

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	Holder entitlements arise only upon lawful issue in accordance with that matrix.
Community Joint Venture Mainspring Hybrid Trust	The COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust comprising Sub-Trust A, Sub-Trust B, and Sub-Trust C, constituted and governed by the Declaration.
Declaration	The COGS of Australia Foundation Community Joint Venture Mainspring CJVM Hybrid Trust Declaration, being the principal operative and governing instrument of the CJVM Hybrid Trust. Unless otherwise stated, clause references in this Deed are references to clauses of the Declaration. References in this Deed to Schedule 9, Part A are references to the Issue-and-Record Matrix contained in the Declaration.
ICIP	Indigenous Cultural and Intellectual Property — the rights of Aboriginal and Torres Strait Islander peoples to maintain, control, protect, and develop their cultural heritage and traditional knowledge, as defined in the Declaration.
Caretaker Trustee	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, acting as trustee of Sub-Trust C in his personal capacity from the date of execution of this Deed unless and until the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration.
Social Benefit Test	The test set out in clause 9 of this Deed that each proposed Grant or direct activity must satisfy before Trust Fund is committed.
Successor Trustee	Any person or entity appointed as trustee of the CJVM Hybrid Trust in accordance with the Declaration. Upon appointment, a Successor Trustee automatically assumes all rights, powers, duties, and obligations of the Trustee under this Deed without any further act or instrument, subject to any documents reasonably required to evidence, perfect, vest, register, or operationalise the change.
Traditional Owners	The Aboriginal and Torres Strait Islander peoples who, under their traditional laws and customs, have a primary spiritual, cultural, and custodial responsibility for particular Country, including any group with Native Title rights recognised under the Native Title Act 1993 (Cth).
Trust Fund	All property held by the Trustee from time to time in its capacity as trustee of Sub-Trust C, including direct allocations received on lawful issue of Donation COG$ / Class D Units, Donation Dividend Stream distributions received through Sub-Trust B, Gift Fund contributions, and all income and accretions thereon.
Trustee	The person or persons holding the office of trustee of Sub-Trust C from time to time under the Declaration.

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	From execution, the Trustee is Thomas Boyd Cunliffe as Caretaker Trustee. Thereafter the Trustee may comprise the continuing trustee, one or more additional individual trustees, a Board of Trustees, or a corporate trustee duly appointed under the Declaration, as the context requires.
Trustee Act	Trustee Act 1936 (SA), as amended or replaced from time to time.

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PART 2 — ESTABLISHMENT AND NAME

5. Establishment and Declaration of Trust

5.1 Declaration. The Caretaker Trustee declares that the Trust Fund is held on trust for the Charitable Purposes set out in clause 6, subject to the terms of this Deed and the Declaration.

5.2 **Name.** The trust established by this Deed is known as the COGS Community Projects Fund, being Sub-Trust C of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust.

5.3 No separate settled sum. The Trustee acknowledges that Sub-Trust C arises under the CJVM Hybrid Trust constituted by the declaration over the Initial Trust Property described in the Declaration, being the specifically identified parcel of 1,545 ASX:LGM shares recorded in account CRVGS. That declaration constitutes the CJVM Hybrid Trust as a whole and not Sub-Trust C separately. No separate settled sum is required to constitute Sub-Trust C. Any property later credited to Sub-Trust C forms part of the Trust Fund of Sub-Trust C in accordance with this Deed.

5.4 **Perpetual sub-trust.** Sub-Trust C is a perpetual sub-trust of the CJVM Hybrid Trust. It continues in existence for so long as the CJVM Hybrid Trust exists, regardless of any change in the person or entity holding the office of Trustee.

5.5 **Not-for-profit.** Sub-Trust C is established as a not-for-profit charitable trust. No part of the Trust Fund may be applied for the private benefit of any person except as expressly permitted by this Deed and applicable law.

5.6 Ring-fencing. Sub-Trust C is permanently ring-fenced from Sub-Trust A and Sub-Trust B. Assets and income of Sub-Trust C must not be commingled with or transferred to Sub-Trust A or Sub-Trust B except as expressly provided in the Declaration. This ring-fencing is an entrenched provision under Declaration clause 35(c).

5.7 Subordination. This Deed is in all respects subordinate to the Declaration. The Trustee must not act under this Deed in any manner inconsistent with any provision of the Declaration, including any entrenched provision listed in clause 35 thereof.

5.8 Independence from corporate constituent documents. This Deed and the trusts declared in it operate independently of any CLG constitution or other constituent document of any corporate trustee. The removal or replacement of a corporate trustee of the CJVM Hybrid Trust does not dissolve, alter, or affect Sub-Trust C or the trusts declared in this Deed. This Deed continues in force and is automatically assumed by any Successor Trustee under the Declaration.

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PART 3 — CHARITABLE PURPOSES

6. Charitable Purposes

The primary purposes of Sub-Trust C are to advance charitable purposes for the benefit of the Australian community, consistent with clauses 27.3, 27.4, and 33E.3 of the Declaration and the charitable purposes described in the Charities Act 2013 (Cth). These purposes are:

6.1 Environmental Stewardship. To support the conservation, protection, and enhancement of the natural environment of Australia, including its ecological systems, biodiversity, waterways, soils, and flora and fauna — with priority given to Country whose ecological integrity is at risk from or affected by resource extraction activities within the Foundation's Members Asset Pool.

6.2 **Social and Community Welfare.** To advance the social welfare and wellbeing of Australian communities, particularly in regional, remote, and disadvantaged areas, including communities adjacent to resource tenements, including by funding:

(a) community-led initiatives that strengthen food resilience, housing stability, and economic participation;

(b) health and mental wellbeing programs accessible to communities facing disadvantage;

(c) disability access and inclusion initiatives;

(d) disaster resilience and recovery programs for communities affected by environmental or resource-related impacts;

(e) digital inclusion programs enabling communities to access governance, financial, and educational participation; and

(f) shared community infrastructure that strengthens belonging and reduces isolation.

6.3 **First Nations Cultural Heritage and Custodianship.** To support and promote:

(a) the preservation and revitalisation of Indigenous Australian cultural heritage, language, ceremony, and knowledge systems;

(b) the recognition and exercise of traditional custodianship by Aboriginal and Torres Strait Islander peoples over their Country;

(c) programs that strengthen the capacity of Traditional Owner groups, Local Aboriginal Land Councils (LALCs), and Prescribed Bodies Corporate (PBCs) to exercise their rights and responsibilities under the Native Title Act 1993 (Cth) and the Aboriginal Land Rights Act 1983 (NSW);

(d) ICIP protection and cultural practice transmission; and

(e) First Nations-led governance, enterprise, and community wellbeing programs.

6.4 **Education on Resource Governance and Ecological Stewardship.** To fund educational initiatives that build community knowledge and capacity in relation to resource governance, land rights, environmental stewardship, ecological sustainability, and the governance of Australia's natural resources in the interests of current and future generations.

6.5 **Relief of Poverty and Systemic Disadvantage.** To provide assistance and resources to persons experiencing financial hardship, systemic disadvantage, or marginalisation in Australian communities, including persons who are homeless or without stable housing, persons in receipt of government concession support, care leavers, and others excluded from economic participation by poverty.

6.6 **Community Flourishing.** To fund programs and initiatives that help individuals, families, and communities move beyond survival into active thriving, including initiatives that strengthen belonging, dignity, agency, learning, health, safety, ecological balance, accessibility, and intergenerational community strength.

6.7 Mandatory Priority and Minimum Allocation for First Nations Beneficiaries. In exercising its discretion under this Deed, the Trustee must designate Indigenous land custodianship, Cultural Heritage protection, and First

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Nations community wellbeing programs as a standing priority class of beneficiaries of Sub-Trust C, in accordance with clauses 27.3(d) and 33E.3 of the Declaration. Not less than thirty per cent (30%) of all Sub-Trust C distributions in each financial year must be allocated to this priority class. This minimum allocation is an entrenched provision of the Declaration (clause 35(a) read with clause 33E.3) and cannot be reduced or removed by any resolution, amendment to this Deed, or any other instrument.

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PART 4 — FUNDING OF SUB-TRUST C

7. Source and Mechanics of Funding

7.1 Two funding sources. Sub-Trust C is funded from two sources, both arising exclusively from the lawful issue of Donation COG$ / Class D Units, as prescribed by clauses 8.3, 24.1, and 27.2 of the Declaration and governed by Schedule 9, Part A of the Declaration. Sub-Trust C's D Class Beneficial Unit Holder entitlements arise only upon such lawful issue and only in accordance with the Tier 1 issuance gate: (a) Direct issue allocation — $2.00 of the $4.00 consideration of each lawfully issued Donation COG$ / Class D Unit is paid directly to Sub-Trust C at the time of lawful issue from Sub-Trust A. The Trustee of Sub-Trust A must transfer this amount to the Sub-Trust C bank account within two (2) business days of lawful issue. This direct allocation is an entrenched founding allocation that cannot be reduced or removed by any resolution (Declaration clause 35(g)). (b) D Class Beneficial Unit Holder distributions — Sub-Trust C holds one Sub-Trust B income unit (Beneficial Unit) as D Class Beneficial Unit Holder for each validly issued Donation COG$ / Class D Unit. Sub-Trust C thereby receives its proportional D Class share of the Donation Dividend Stream through Sub-Trust B. The Donation Dividend Stream is split 50% to Sub-Trust B (from which Sub-Trust C receives its proportional D Class entitlement), 25% to mandatory reinvestment in Sub-Trust A, and 25% to trustee administration costs.

7.2 Trust Fund constituents. The Trust Fund of Sub-Trust C is constituted by: (a) all $2.00 direct issue allocations received from Sub-Trust A on each lawful issue of a Donation COG$ / Class D Unit; (b) all Beneficial Unit distributions received as D Class Beneficial Unit Holder through Sub-Trust B following such lawful issue; (c) any gifts, bequests, or contributions received under clause 7.6 and the Gift Fund under clause 11; and (d) all income, accretions, and bank balances held by the Trustee for the purposes of Sub-Trust C.

7.3 No other unit-class consideration. Sub-Trust C does not receive any portion of the consideration of any Unit Class other than the $2.00 direct allocation from the lawful issue of Donation COG$ / Class D Units. The remaining $2.00 of each Donation COG$ / Class D Unit consideration is invested through Sub-Trust A in accordance with the Declaration. Any corresponding COG$ Token consequences of the lawful issue of the Class D Unit are governed exclusively by the Declaration, including Schedule 9, Part A, and do not alter the funding character of Sub-Trust C under this Deed.

7.4 Transfer obligation. The Trustee of Sub-Trust A must pay the $2.00 direct allocation to the Sub-Trust C trust bank account within two (2) business days of each lawful issue of a Donation COG$ / Class D Unit. Failure to transfer within that period constitutes a breach of trust enforceable by Sub-Trust C or any Beneficiary Holder in the Supreme Court of South Australia.

7.5 Compounding growth. Because Sub-Trust C's Beneficial Unit distributions are funded by dividends on a growing parcel attributed through the Donation Ledger, the Trust Fund is intended to support growth over time, subject to the performance of the Donation-attributed assets and the operation of the Donation Dividend Stream.

7.6 Additional contributions. The Trustee may accept gifts, bequests, donations, and other contributions from any person or entity for the Charitable Purposes, subject to clause 11 and any applicable ACNC or DGR requirements.

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PART 5 — GRANT-MAKING AND APPLICATION OF TRUST FUND

8. Grant-Making Powers and Process

8.1 Application of Trust Fund. The Trustee must apply the Trust Fund solely in pursuit of the Charitable Purposes. The Trustee may make Grants to eligible Grantees and may directly carry out activities in furtherance of the Charitable Purposes, consistent with this Deed and the Declaration.

8.2 Grant Guidelines. The Trustee must publish Grant Guidelines before making any Grants. Grant Guidelines must be developed in consultation with the FNAC and reviewed at least annually with the FNAC. No Grant Guidelines may be published or amended without FNAC consultation in accordance with clause 13.1(b). Grant Guidelines must include criteria directed to community flourishing, including:

(a) likely contribution to long-term wellbeing, inclusion, and local capability;

(b) environmental stewardship and ecological benefit;

(c) practical accessibility and disability inclusion;

(d) intergenerational benefit and community-led design;

(e) First Nations custodianship, Cultural Heritage, and community self-determination; and

(f) demonstrated alignment with the Foundation's objects and principles in Part 2 of the Declaration.

8.3 Eligible Grantees. The class of beneficiaries of Sub-Trust C is limited, consistently with Declaration clause 27.3, to:

(a) community and not-for-profit organisations aligned with the Charitable Purposes and the Foundation's objects;

(b) environmental and conservation organisations;

(c) Traditional Owner organisations, Local Aboriginal Land Councils, Prescribed Bodies Corporate, and other First Nations-led community entities, who form the standing priority class under clause 6.7 of this Deed;

(d) educational initiatives on resource governance, ecological stewardship, and community capability development;

(e) social welfare programs in communities adjacent to resource tenements;

(f) health and mental wellbeing organisations serving disadvantaged communities; and

(g) other charitable or public-benefit entities that strengthen conditions for community flourishing in Australia, as determined by the Trustee in accordance with this Deed.

8.4 **No direct Grants to private persons.** The Trustee must not make a Grant directly to a private individual except where the individual is a direct beneficiary of a program carried out by an eligible Grantee and the Grant is made through that Grantee.

8.5 **Grant conditions.** Every Grant must be subject to conditions requiring the Grantee to:

(a) apply the Grant solely for the agreed Charitable Purpose;

(b) report to the Trustee on the application of the Grant and outcomes achieved within 12 months of the Grant date or such other period as the Trustee specifies;

(c) repay any portion of the Grant not applied for the agreed purpose; and

(d) comply with all applicable laws, including privacy, AML/CTF, and relevant First Nations consultation obligations.

8.6 FNAC consultation. Before making any Grant that affects, involves, or relates to Traditional Owner Country, Cultural Heritage, or First Nations communities, the Trustee must consult with the FNAC and give due weight to the FNAC's advice, as required by Declaration clause 33A.3(d). The Trustee must provide the FNAC with a breakdown of all Grants made to First Nations community organisations in the annual Sub-Trust C grants report.

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8.7 **Urgent distributions.** Where circumstances require an urgent Grant for humanitarian, disaster relief, or cultural heritage emergency purposes, the Trustee may make a Grant without completing its full assessment process, provided that retrospective assessment and reporting requirements are completed within 60 days.

9. Social Benefit Test

9.1 **Application.** Every proposed Grant and every proposed direct application of the Trust Fund to carry out activities must satisfy the Social Benefit Test before funds are committed.

9.2 Test satisfied. The Social Benefit Test is satisfied only where:

(a) the proposed Grant or activity provides a clear, demonstrable public benefit to Australian communities, extending beyond the private interests of any individual, organisation, or donor;

(b) the proposed Grant or activity is consistent with the Charitable Purposes in clause 6;

(c) where the Grant involves Traditional Owner Country, Cultural Heritage, or First Nations communities, the Trustee has consulted with the FNAC under clause 8.6 and any applicable FPIC obligations under Declaration clause 33C have been addressed;

(d) the proposed Grant or activity does not contradict the Foundation's entrenched objects, principles, or ESG stewardship commitments in Part 2 of the Declaration.

9.3 **Record-keeping.** The Trustee must document its Social Benefit Test assessment for each proposed Grant or activity and retain those records as part of its financial records.

10. No Private Benefit

10.1 **Not-for-profit requirement.** No portion of the Trust Fund may be paid or transferred, directly or indirectly, to the Trustee, its Directors, Officers, or Members, except:

(a) reimbursement of reasonable out-of-pocket expenses actually incurred in connection with the administration of Sub-Trust C; and

(b) reasonable remuneration for services genuinely rendered to the Trust, where those services are necessary for administration and remuneration is at market rates.

10.2 **No benefit to related parties.** Grants and activities funded from the Trust Fund must not be structured to confer private benefit on related parties of the Trustee.

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PART 6 — DGR COMPLIANCE AND GIFT FUND

11. The Gift Fund

11.1 Establishment. If Sub-Trust C is endorsed as a DGR, or if the Trustee applies for such endorsement under Division 30 of the Income Tax Assessment Act 1997 (Cth) as required or permitted by the Declaration and applicable law, the Trustee must maintain a separate Gift Fund within Sub-Trust C to which:

(a) gifts of money or property for the Charitable Purposes are made;

(b) money received as a result of such gifts (including from fundraising events) is credited; and

(c) income earned from investment of those gifts is credited.

11.2 **Permitted use.** The Gift Fund must be used only for the Charitable Purposes set out in clause 6. Gift Fund monies must not be applied for any purpose that would compromise DGR endorsement or ACNC charitable registration.

11.3 Separate accounting. The Trustee must maintain separate accounts for the Gift Fund, ensure that Gift Fund assets are identifiable and segregated from other Trust Fund assets, and maintain a current Gift Fund register if DGR endorsement is obtained.

11.4 **DGR obligations.** If DGR endorsement is obtained, the Trustee must comply with all obligations imposed by Division 30 of the Income Tax Assessment Act 1997 (Cth) and any ATO conditions of endorsement, including:

(a) maintaining the Gift Fund in accordance with applicable tax law;

(b) ensuring the Gift Fund is transferred to an eligible recipient on any loss of DGR status; and

(c) not applying Gift Fund assets for any purpose inconsistent with the DGR category under which the Trust is endorsed.

11.5 ACNC registration. The Trustee must apply for ACNC registration of Sub-Trust C as a standalone charitable trust at the earliest practicable opportunity, and in any event before or on Expansion Day, as the Caretaker Trustee is already lawfully able to do so and must maintain that registration in good standing.

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PART 7 — GOVERNANCE AND OVERSIGHT

12. Trustee Powers and Duties

12.1 General powers. Subject to this Deed and the Declaration, the Trustee has all powers necessary or expedient to carry out the Charitable Purposes, including the power to:

(a) receive and hold property on trust;

(b) invest the Trust Fund in any manner permitted by law for trustees, subject to clause 12.2;

(c) make Grants to eligible Grantees;

(d) enter into contracts and incur liabilities on behalf of Sub-Trust C;

(e) employ or engage staff, contractors, advisers, and service providers;

(f) open and operate bank accounts in the name of the Trustee in its trustee capacity;

(g) establish and maintain the Gift Fund;

(h) apply for ACNC registration and DGR endorsement; and

(i) do all other things reasonably necessary to administer Sub-Trust C.

12.2 Investment restriction. The Trustee must not apply Trust Fund assets in any manner that: (a) would compromise the Charitable Purposes, ACNC registration, or DGR endorsement of Sub-Trust C; (b) contradicts the Foundation's entrenched objects and principles in Part 2 of the Declaration, including the in-ground mineral value doctrine (Declaration objects 4.9–4.15), the ESG stewardship commitments, FPIC obligations, the role of the FNAC, or the shareholder activist mandate in Declaration clause 30.2; (c) would cause the Foundation to hold assets in any company that the FNAC or Board has determined is actively and materially degrading or threatening the ecological integrity of Traditional Owner Country, community land, or waterways; (d) conflicts with the Foundation's Shareholder Engagement Policy published under Declaration clause 13.2; or (e) exposes the Trust Fund to speculative or inconsistent risk unrelated to the prudent administration of a charitable trust.

12.3 Trustee duties. In its capacity as trustee of Sub-Trust C, the Trustee owes the following duties as required by the Trustee Act and applicable equitable principles:

(a) to act in the best interests of the Charitable Purposes and the beneficiaries of Sub-Trust C;

(b) to keep Sub-Trust C assets strictly separate from the Trustee's own property and separate from Sub-Trust A and Sub-Trust B;

(c) to exercise reasonable care, skill, and diligence in managing the Trust Fund;

(d) not to profit from the trust or permit any conflict of interest to affect its duties as Trustee, except as expressly permitted by this Deed; and

(e) to comply with all obligations imposed by this Deed, the Declaration, the Corporations Act, the Trustee Act, and applicable trust law.

12.4 Non-MIS statement. The CJVM Hybrid Trust is not a managed investment scheme within the meaning of section 9 of the Corporations Act. The Trustee must not represent to any third party, regulator, or court that the CJVM Hybrid Trust is or may be a managed investment scheme. The Members' position is that the CJVM Hybrid Trust is a community joint venture, not a managed investment scheme. The third limb of section 9 is not satisfied because the Members exercise day-to-day control over the operation of the trust through their proprietary cryptographic systems.

12.5 **No borrowing for distribution.** The Trustee must not borrow money for the purpose of making Grants or distributions from the Trust Fund.

13. FNAC Advisory Role

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13.1 **Mandatory consultation.** The Trustee must consult the FNAC before:

(a) making any Grant that affects, involves, or relates to Traditional Owner Country, Cultural Heritage, or First Nations communities;

(b) publishing or amending the Grant Guidelines;

(c) approving any activity funded from Sub-Trust C that involves the use, reproduction, or reference to ICIP; and

(d) selecting recipients for Sub-Trust C dissolution distributions under clause 17.

13.2 **FNAC standing.** The FNAC has standing to:

(a) review and comment on any proposed Grant before it is made;

(b) request written reasons from the Trustee if a Grant is declined where the FNAC had recommended it; and

(c) include statements in the annual Sub-Trust C grants report reflecting the FNAC's independent assessment, published without editorial modification.

13.3 FPIC. Where any proposed Grant or activity funded from Sub-Trust C may materially affect Traditional Owner Country, the Trustee must ensure that the applicable FPIC obligations under Declaration clause 33C are addressed before funds are committed.

14. Reporting and Transparency

14.1 Annual grants report. The Trustee must publish an annual Sub-Trust C grants report as part of the Foundation's annual report, as required by Declaration clause 27.6. The grants report must include:

(a) all Grants made during the financial year, including Grantee names, funded purposes, amounts, and community outcomes;

(b) confirmation that the 30% minimum annual allocation to First Nations programs required by clause 6.7 has been met, with a breakdown of distributions to that priority class;

(c) the balance of the Trust Fund at year end;

(d) the total amount of the Donation Dividend Stream received from Sub-Trust A during the year;

(e) any Grants made urgently under clause 8.7; and

(f) the FNAC's independent assessment, including any written endorsement or statement of concerns, published without editorial modification.

14.2 Annual financial statements. Sub-Trust C financial records must be maintained in accordance with Australian Accounting Standards and audited by a registered company auditor. The audited statements must be included in the Foundation's annual audited financial statements presented to Beneficiary Holders at each AGM. The Trustee must also maintain a current grants register and retained Social Benefit Test records.

14.3 Financial year. The financial year of Sub-Trust C is 1 July to 30 June of each year, consistent with Declaration clause 37.6.

14.4 Website publication. The Trustee must publish on the Foundation's website all information required by the Declaration in connection with Sub-Trust C, including annual grants reporting, current Grant Guidelines, and any statement required in relation to the Donation Ledger and its audited outcomes.

14.5 NAIDOC Week. The Trustee must observe NAIDOC Week annually and publish a public statement on the Foundation's progress in delivering First Nations stewardship commitments, including through Sub-Trust C, as required by the Declaration.

14.6 **AML/CTF compliance.** The Trustee must comply with all obligations under the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth) in relation to Sub-Trust C activities, including any applicable transaction monitoring and record-keeping requirements.

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14.7 Continuity notices. The Trustee must give prompt written notice to the FNAC and to the trust records custodian if grant administration is suspended, ACNC registration or DGR status is threatened, the trustee structure becomes inquorate or otherwise unable lawfully to authorise Grants, or trustee continuity is disrupted.

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PART 8 — CONSTITUTIONAL CONSISTENCY AND PROTECTIONS

15. Primacy of the Declaration

15.1 Paramountcy. This Deed is in all respects subject to and must be read consistently with the Declaration. Any provision of this Deed that purports to modify, limit, or override any provision of the Declaration is void and of no legal effect.

15.2 Entrenched provisions. The following entrenched provisions of the Declaration apply directly and automatically to Sub-Trust C and cannot be amended, removed, or circumvented by any resolution or by any provision of this Deed:

(a) the charitable purposes of Sub-Trust C and the designation of First Nations communities as a standing priority class of beneficiaries receiving not less than 30% of annual Sub-Trust C distributions (clause 35(a) read with Declaration clause 33E.3); and (a1) the rule that any D Class Beneficial Unit Holder entitlement of Sub-Trust C arises only from lawful issue of the relevant Donation COG$ / Class D Unit in accordance with the Tier 1 issuance.

(b) the permanent ring-fencing of Sub-Trust C assets from Sub-Trust A and Sub-Trust B (Declaration clause 35(c));

(c) on dissolution, Sub-Trust C assets must be transferred to ACNC-registered charitable organisations with substantially similar objects, with First Nations organisations prioritised (clause 35(p) read with Declaration clause 41.2(b));

(d) the Donation direct-payment and Donation Dividend Stream mechanics applicable to Sub-Trust C under the Declaration cannot be reduced or altered by any resolution contrary to Declaration clause 35(g);

(e) the FNAC's advisory and approval rights over Sub-Trust C grant-making to Indigenous beneficiaries under Declaration clause 33A.3(d) cannot be removed.

15.3 Anti-circumvention. No guideline, grant policy, internal procedure, advisory note, software rule, administrative practice, or technical implementation may amend, dilute, delay, avoid, or circumvent any operative restriction of the Declaration or of this Deed except by a valid amendment made in accordance with the Declaration.

15.4 Invalidity and corrective action. To the extent permitted by law, any purported Grant, transfer, distribution, activation of the Gift Fund, or use of trust property in breach of an entrenched provision, a Charitable Purpose limitation, a required FNAC consultation obligation, or any operative restriction of this Deed or the Declaration is ineffective, confers no enforceable beneficial right on the recipient, and must be reversed, recovered, or corrected in the trust records.

15.5 Anti-greenwashing. The Trustee must not cause or permit Sub-Trust C to be used in any manner that constitutes ESG-washing or misrepresents the Foundation's ESG performance or its assessment of any portfolio company. The Trustee must comply with Declaration clause 34A.

15.6 Trustee succession. This Deed operates as a sub-trust instrument under the Declaration. Its continuity is governed by that Declaration, not by the identity of any particular Trustee. Upon appointment of a Successor Trustee under the Declaration: (a) all Trust Fund assets vest in, or are to be transferred to or otherwise held accordingly by, the Successor Trustee; (b) the Successor Trustee assumes all rights, powers, duties, and obligations of the Trustee under this Deed; and (c) this Deed continues in full force and effect as if the Successor Trustee had been named as Trustee from the date of this Deed. No amendment to or re-execution of this Deed is required. The outgoing Trustee must execute all documents reasonably required to perfect that vesting or transfer.

15.7 Emergency administration. Where the trustee structure is inquorate, the Board cannot lawfully authorise Grants, FNAC consultation cannot be completed where required, or charitable-registration or DGR status is materially threatened, no new discretionary Grants may be made. In that event, the Trustee may take only preservation, compliance, notice, emergency relief expressly authorised by this Deed and applicable law, and court-directions steps until lawful administration is restored.

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16. Amendment

16.1 Scope of permissible amendment. Pursuant to Declaration clause 8.6, no supplementary instrument — including this Deed — may modify or override any entrenched provision of the Declaration or any obligation imposed by the Corporations Act, the Trustee Act, or applicable trust law. Any purported amendment inconsistent with an entrenched provision is void by operation of Declaration clause 35A.1.

16.2 Amendment process. Subject to clause 16.1, the Trustee may amend this Deed by board resolution, provided that: (a) any amendment to the Charitable Purposes in clause 6 or to the FNAC's role under clause 13 requires the prior written endorsement of the FNAC, which may be withheld in the FNAC's discretion, acting consistently with the Declaration, together with independent legal advice confirming consistency with the Declaration; (b) no amendment may cause Sub-Trust C to cease to qualify as a charitable trust or to lose ACNC registration or DGR endorsement; and (c) no amendment may reduce the 30% minimum annual allocation to First Nations programs required by clause 6.7.

16.2A Trustee amendment obligation. Where a valid Members Poll under the JVPA directs the Trustee to amend this Deed, the Trustee must execute the required amendment within 30 days of that direction, or such other period as the resolution specifies. The Trustee may not refuse to execute such amendment except where compliance would require the Trustee to breach an entrenched provision of the Declaration or applicable law. Written reasons must be provided to the Members within 5 business days if the Trustee declines to act.

16.3 ACNC notification. Material amendments to this Deed must be notified to the ACNC in accordance with applicable charity law.

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PART 9 — WINDING UP AND DISSOLUTION

17. Winding Up

17.1 Winding up events. Sub-Trust C shall be wound up only upon the dissolution of the CJVM Hybrid Trust in accordance with Part 14 (clause 41) of the Declaration, or upon order of a court of competent jurisdiction.

17.2 **Priority of creditors.** Before any distribution of surplus assets, all liabilities of Sub-Trust C must be satisfied.

17.3 Distribution of surplus. Upon winding up, after satisfaction of liabilities, surplus assets (including Gift Fund assets) must be transferred to one or more ACNC-registered charitable organisations that: (a) have charitable purposes substantially similar to the Charitable Purposes of this Trust; (b) are registered as a charity with the ACNC; and (c) are endorsed as a DGR, if this Trust was DGR-endorsed at the time of winding up.

17.4 FNAC role on dissolution. In selecting recipient organisations under clause 17.3, the Trustee must: (a) consult the FNAC before making any selection; (b) give priority to First Nations-led organisations where available and eligible; and (c) act in accordance with Declaration clause 41.2(b).

17.5 Prohibition on private distribution. Under no circumstances may surplus Sub-Trust C assets be distributed to individual Members or for-profit entities on winding up. This prohibition is an entrenched provision under the Declaration.

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PART 10 — GENERAL PROVISIONS

18. General

18.1 Governing law. This Deed is governed by and construed in accordance with the laws of South Australia, Australia.

18.2 Jurisdiction. The courts of South Australia have non-exclusive jurisdiction to determine disputes arising from or relating to this Deed.

18.3 **Trustee capacity.** The Trustee acts under this Deed solely in its trustee capacity. No obligation or right arising under this Deed is an obligation or right of the Trustee in its personal or corporate capacity. Trust property held under this Deed is not available to meet any liability of the Trustee in its personal or corporate capacity.

18.4 **Notices.** Notices under this Deed shall be given by email or by publication on the Foundation's website. Notices take effect: (a) if by email, on the next business day after sending; and (b) if by website publication, two business days after publication.

18.5 **Conflict of capacities.** Where the Trustee's trustee obligations under this Deed conflict with any corporate obligations, the Trustee must obtain independent legal advice and give priority to its fiduciary obligations as trustee of Sub-Trust C.

18.6 **Waiver.** A waiver by the Trustee of any right under this Deed does not constitute a waiver of any other right or a continuing waiver.

18.7 **Severability.** If any provision of this Deed is held invalid or unenforceable, it must be read down to the minimum extent necessary to make it valid. If it cannot be read down, it must be severed and the remaining provisions continue in full force.

18.8 Counterparts. This Deed may be executed by electronic signature or by electronic execution pages forming part of one electronically authenticated instrument. Each such execution page and its associated execution record forms part of the one original electronically executed Deed referred to in clause 1.5A. A printed copy of that electronically authenticated instrument is evidence only and not the original.

18.9 Records continuity. The Trustee must maintain a current grants register, a current Gift Fund register if DGR endorsement is obtained, retained Social Benefit Test records, and a current notice log for any suspension of grant administration, threatened charitable status, or disruption to trustee continuity.

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SCHEDULE 1 — INITIAL TRUST PROPERTY AND SETTLEMENT

The CJVM Hybrid Trust is constituted by the declaration and Caretaker Trustee, Thomas Boyd Cunliffe, that holds the Initial Trust Property on the trusts of the Declaration. Sub-Trust C does not receive a separate settled sum. Any property later credited to Sub-Trust C constitutes the Trust Fund of Sub-Trust C in accordance with this Deed.

Field	Detail
ASX listing	ASX:LGM (LEGACY MINERALS HOLDINGS LIMITED)
Number of shares	1,545 shares
Account	CRVGS (IG brokerage account)
Book cost	$239.48 AUD
Evidence	IG account statement for account CRVGS
Held for	COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust

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SCHEDULE 2 — CHARITABLE PURPOSES CROSS-REFERENCE AND GRANT FRAMEWORK

Part A — Charitable Purposes Cross-Reference

Charitable Purpose (Clause 6)	Declaration Cross-Reference	ACNC Category
Environmental Stewardship (cl.6.1)	Objects 4.9–4.15; ESG Engagement Policy	Advancing the natural environment
Social and Community Welfare (cl.6.2)	Part 2 objects; clause 27.3(b)	Advancing social or public welfare
First Nations Cultural Heritage (cl.6.3) — Priority class ≥30%	Clauses 33A, 33C, 33E.3; UNDRIP	Advancing culture; advancing social or public welfare
Education on Resource Governance (cl.6.4)	Clause 27.3(c); Part 2 objects	Advancing education
Relief of Poverty (cl.6.5)	Clause 27.3(b)	Relieving the necessitous circumstances of individuals
Community Flourishing (cl.6.6)	Clause 27.3; community dividend engine	Advancing social or public welfare

Part B — Entrenched Provisions Applicable to Sub-Trust C

Declaration Clause	Subject	Effect on Sub-Trust C
35(a) read with 33E.3	First Nations priority	≥30% annual distributions to First Nations — cannot be reduced
35(c)	Ring-fencing	Sub-Trust C permanently ring-fenced from Sub-Trust A and Sub-Trust B
35(g)	Funding splits	$2.00 direct allocation and D Class Beneficial Unit entitlement — cannot be altered
35(p)	No private distribution	On dissolution, assets to ACNC-registered charities with similar purposes

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EXECUTION

This instrument is executed as a deed by Thomas Boyd Cunliffe as Declarant and as Caretaker Trustee of Sub-Trust C by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required. If witnessing is required by applicable law, the witness may attest electronically, including by separate audio-visual connection, and that attestation forms part of this Deed's own Deed Execution Record. If this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains separately executed but is deemed for instrument-suite dating and effect to take effect on that same date.

DECLARANT

Signed by	**Thomas Boyd Cunliffe**
Electronic signature	**Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. Sub-Trust C arises as a ring-fenced division of the CJVM Hybrid Trust; no separate settled sum is required. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.**
Name	Thomas Boyd Cunliffe
Capacity	as Declarant
Execution date	For execution-record custody and authenticated-copy protocol, see clause 1.5A.
Electronic witness attestation	If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law.

TRUSTEE — SUB-TRUST C

Signed by	**Thomas Boyd Cunliffe**
Electronic signature	**Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. Sub-Trust C arises as a ring-fenced division of the CJVM Hybrid Trust; no separate settled sum is required. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.**
Name	Thomas Boyd Cunliffe
Capacity	as Caretaker Trustee of Sub-Trust C of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust
Execution date	For execution-record custody and authenticated-copy protocol, see clause 1.5A.
Electronic witness attestation	If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law.

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